

SJPD ALPR audits 2024-2025, annual data usage reports, and personal-device / off-duty access rules

MuckRock request #222054 · San Jose Police Department · Agency tracking # P010012-092726

Status: Awaiting Response · Submitted: Sept. 25, 2026 · Due: Oct. 5, 2026 (overdue per MuckRock) · Estimated Completion: None

Source: <https://www.muckrock.com/foi/san-jose-336/sjpd-alpr-audits-20242025-annual-data-usage-reports-and-personal-device-off-duty-access-rules-222054/>

Captured 2026-10-09T04:35:35Z from the public request page (raw HTML sha256 d8ea96f867a3c77a1a772ae62286e68859e129d5976d154da854b1f0e0ea589). Communication text is extracted verbatim. Redacted: requester surname (first sender's full name reduced to first name); MuckRock upload links; MuckRock request routing addresses.

From: Brian — 2026-09-25T23:12:18.664285-04:00 (Portal)

Subject: California Public Records Act Request: SJPD ALPR audits 2024-2025, annual data usage reports, and personal-device / off-duty access rules

To Whom It May Concern:

Pursuant to the California Public Records Act, I hereby request the following records:

1. Each audit of Department use of the Flock automated license plate reader (ALPR) system that covers any search conducted from January 1, 2024 through April 30, 2025, including any monthly audit and any periodic, random audit conducted under the Accountability provisions of Duty Manual section L 4207: each audit report or memorandum, worksheet, checklist, and list of searches sampled or flagged, and any record of the finding or corrective action for each flagged search.
2. The internal search history audit of the Flock ALPR system (organization audit) for calendar year 2025 conducted on February 4, 2026, as described in the Chief's February 9, 2026 memorandum "Automated License Plate Readers Data Usage Protocol Update" (File No. 26-215): the audit report, worksheet, criteria applied, and any list of searches examined or flagged. Also any comparable audit of calendar year 2024 search history.
3. The Department's annual ALPR data usage reports for calendar years 2024 and 2025, as submitted, including their audit narratives.
4. The memorandum or directive issued in or about September 2026 restricting access to law enforcement databases from personal electronic devices; any earlier policy change restricting access to ALPR or other law enforcement sensitive systems from personal devices; and any written policy, directive, order, or training material in effect at any time from January 1, 2024 until that memorandum that addresses access to the Flock ALPR system, or to Department law enforcement databases generally, from a personal device or while off duty.

This request does not seek internal affairs or personnel investigation records.

Duty Manual section L 4207 provides that "[a]udit trails shall be maintained by the Department for a minimum of two (2) years." Some of the period covered by this request is at or near that minimum, so I ask that the audit records responsive to this request, and the audit trails they reviewed, be preserved while it is pending.

If any record or portion of a record is withheld, please identify the exemption asserted for it and release any reasonably segregable portion. Please produce records for each item as they become available rather than holding the request for the slowest item. I request electronic copies.

The requested documents will be made available to the general public, and this request is not being made for commercial purposes.

In the event that there are fees, I would be grateful if you would inform me of the total

charges in advance of fulfilling my request. I would prefer the request filled electronically, by e-mail attachment if available or CD-ROM if not.

Thank you in advance for your anticipated cooperation in this matter. I look forward to receiving your response to this request within 10 calendar days, as the statute requires.

Sincerely,

Brian

From: San Jose Police Department - 2026-09-27T22:50:35.221647-04:00 (Portal)

Subject: Public Records Request - San Jose Police Department :: P010012-092726

Dear Brian:

Thank you for your interest in public records of the San Jose Police Department. Your request was received on 9/27/2026 and is being processed. The reference number for tracking purposes is P010012-092726 .

Records Requested:

To Whom It May Concern:

Pursuant to the California Public Records Act, I hereby request the following records:

1. Each audit of Department use of the Flock automated license plate reader (ALPR) system that covers any search conducted from January 1, 2024 through April 30, 2025, including any monthly audit and any periodic, random audit conducted under the Accountability provisions of Duty Manual section L 4207: each audit report or memorandum, worksheet, checklist, and list of searches sampled or flagged, and any record of the finding or corrective action for each flagged search.
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Sincerely,

Brian

Upload documents directly: [MuckRock upload link removed]

You can monitor the progress of your request at the link below. An email will be provided

when your request has been completed. Again, thank you for using the Public Records Center.

City of San Jose

To track your request and respond, visit the

,
then click on "My Records Center."

From: San Jose Police Department - 2026-10-07T17:29:04.955174-04:00 (Portal)

Subject: [Records Center] Public Records Request - San Jose Police Department :: P010012-092726

--- Please respond above this line ---

RE: Public Records Request - San Jose Police Department of September 27, 2026., Reference # P010012-092726.

Dear Brian,

The City of San Jose received a public information request from you on September 27, 2026. Your request stated: "To Whom It May Concern:

Pursuant to the California Public Records Act, I hereby request the following records:

1. Each audit of Department use of the Flock automated license plate reader (ALPR) system that covers any search conducted from January 1, 2024 through April 30, 2025, including any monthly audit and any periodic, random audit conducted under the Accountability provisions of Duty Manual section L 4207: each audit report or memorandum, worksheet, checklist, and list of searches sampled or flagged, and any record of the finding or corrective action for each flagged search.
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Sincerely,

Brian

Upload documents directly: [MuckRock upload link removed]

I am still researching to find out if there are any responsive records. I will provide an update on that portion of your request as soon as possible. Thank you for your patience.

Sincerely,

Astrid Escobedo

Analyst II

Police - Research and Development Unit